

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA**

In the matter of an Appeal made under
Section 331(1) of the Code of Criminal
Procedure Act No.15 of 1979 read with
Article 138 of the Constitution of the
Democratic Socialist Republic of Sri
Lanka.

Court of Appeal No:
CA/HCC/0259/2024
High Court of Puttalam
Case No: HC/151/2019

Hettiarachchige Gamini Premalal
Perera alias Ruwan

ACCUSED-APPELLANT

Vs.

The Hon. Attorney General
Attorney General's Department
Colombo-12

COMPLAINANT-RESPONDENT

BEFORE : **P. Kumararatnam,J.**
R.P.Hettiarachchi,J.

COUNSEL : **Chamara Wannisekera with Isuri Cooray**
for the Appellant.
Chrisanga Fernando, SC for the
Respondent.

ARGUED ON : **11/03/2026**

DECIDED ON : **23/06/2026**

JUDGMENT

P. Kumararatnam, J.

The above-named Accused-Appellant (hereinafter referred to as the Appellant) was indicted by the Attorney General in the High Court of Puttalam for committing two counts of incest on his daughter namely Hettiarachige Amila Sanjeevani between 01/01/2006 to 31/12/2006 an offence punishable under Section 364(3) of the Penal Code as amended.

After the trial the Appellant was convicted for the second count and he was sentenced to 19 years rigorous imprisonment with a fine of Rs.20,000/-. In default of which 06 months simple imprisonment was imposed. The Appellant was acquitted from the first count.

Being aggrieved by the aforesaid conviction and sentence, the Appellant preferred this appeal to this court. The Learned Counsel for the Appellant informed this court that the Appellant has given consent to argue this matter in his absence. Also, at the time of argument the Appellant was connected via the Zoom platform from prison.

The Counsel for the Appellant placed the following grounds of appeal for adjudication:

1. PW1 is not a credible witness.
2. The Learned High Court Judge has erred in not considering the dock statement of the Appellant and the evidence of the defence witnesses.

PW1, the prosecutrix who encountered this unpleasant incident was in grade 12. The Appellant is her biological father. According to her, she is not quite close to her father.

On the day of the first incident, when she was at home her father had dragged her to a bed and committed rape on her. The prosecutrix had not informed about this incident to her mother as she feared that the Appellant would harm her mother.

The second incident had also happened similar to the first one when she sat for her Ordinary Level Examination. She did not divulge this incident to anybody due to fear. But she had written letters to her aunt. A friend namely Kasun had delivered the letter to her aunt.

Her pregnancy was revealed when she was admitted to the hospital after taking an overdose of Panadol. She had given her first statement at the hospital but she did not come out with the truth due to the instigation of her mother. At very first she had told the police and the JMO who examined her, that an unknown person had committed rape on her while she was at home.

PW4 had recorded the first statement of the victim at the Kurunegala Hospital. PW6, had recorded the 2nd and 3rd statements of the victim.

PW11, the JMO had examined the victim and submitted the Medico-Legal Report. The report indicates that the victim was 8 weeks pregnant. The observations in the medical report had revealed that the victim was subjected to repeated vaginal intercourse.

After the conclusion of the prosecution's case, the Learned High Court Judge had called for the defence. The Appellant had made a lengthy dock statement, and had called two witnesses on his behalf and closed the case for the defence.

In the first ground of appeal, the Appellant contended that the evidence given by the prosecutrix is not credible.

The credibility of the evidence given by a rape victim would be of utmost importance in criminal trials, as it would solely determine the conviction of an accused, especially when no physical evidence would be available. The Court would consider the consistency in testimonies, post assault behaviour and the surrounding circumstances. Although a victim's testimony alone can be sufficient to convict, it is thoroughly analysed to detect any "inconsistencies" or deviations from usual behaviours.

In sexual assault cases, the most important factor would be credibility which includes personal characteristics, such as whether the victim is genuine and trustworthy. Such perceptions of credibility would be influenced by demeanour, for instance, the victim being calm and not argumentative towards the defence. In such situations, memory and communication skills would also play a major role, as the victim would be required to recall and relate what happened. Credibility can also be assessed by considering the consistency in the statements given by the victim at various points in time, between the statements by the victim and witnesses, and in the victim's post assault behaviour.

In the case of **Deepak Kumar Sahu Versus State of Chhattisgarh** 2025 INSC 929 it was held:

"This Court observed that if the evidence of the victim does not suffer from any basic infirmities and the factor of probability does not render it unworthy evidence, the conviction could base solely on the evidence

of the prosecutrix. It was further observed that as a general rule there is no reason to insist on the corroboration except in certain cases, it was stated. The medical evidence may not be available in which circumstance, solitary testimony of the prosecutrix could be sufficient to base the conviction.”

In the case of **Keshav v. State of Maharashtra** (2025 INSC 604) it was held that:

“The Court should be equally careful in protecting the accused from a false implication. While applying the broad principle that an injured witness, whose presence cannot be doubted, as she would ordinarily not lie, still there is no presumption or any basis for assuming that the statement of such a witness is always correct or without any embellishments.”

In the case of **Ajith v. Attorney-General**, (2009) 1 SLR 23 it was held:

“If the prosecutrix in a rape case is not a reliable or believable witness, the evidence seeking to corroborate her story cannot strengthen her evidence. Court should seek corroborative evidence only if the prosecutrix is a reliable witness.”

PW1 had admitted that she did not divulge the incident until she was hospitalised. Although the victim initially stated that she was raped by an unknown person, in her subsequent statements she came out with the true story and gave evidence accordingly. Her first statement to police and the history given to the JMO were totally influenced by her mother. Therefore, she had implicated an unknown person.

But during the trial she had come out with the incident correctly after 15 years of the incident. Not divulging the true story at the very outset would not affect the prosecution’s case, as the victim had given plausible reasons as to why she said so at that time.

The Learned Counsel for the Appellant strenuously argued that, although the victim repeatedly told court that she was about to be taken for a DNA test but her mother had not consented, the JMO had told court that the DNA test cannot be done during the pregnancy. Therefore, the Counsel argues that this inter se contradiction is a clear testament that she is fabricating a story against her father.

In respect of this point, I am of the belief that the victim had not lied or fabricated a story against her father, rather she had merely proceeded to recall and state the facts according to her comprehension at that time, as a child below the age of 16.

Further, the Learned High Court Judge has in fact at pages 237 and 248 of the brief acknowledged that the victim's evidence needs to be evaluated with caution.

In this case, the prosecutrix was consistent in her evidence about the happenings of the incident. She had vividly explained how she was raped by the Appellant on two occasions. She had given evidence before the High Court for more than 15 years after the incident.

The Learned High Court Judge has sufficiently given due consideration to the infirmities in the evidence of PW1 and therefore, I conclude that the Learned High Court Judge had not erred in law in evaluating her evidence under the accepted principles.

In the second ground of appeal, the learned Counsel contended that the Learned High Court Judge has erred in not considering the dock statement of the Appellant and the evidence of defence witnesses.

A dock statement refers to an unsworn, statement free of cross examinations made by an accused, and the Courts must consider such statements as evidence. If it raises a reasonable doubt, the accused can be acquitted. It would be considered alongside the prosecution's case and the defence evidence, although it would hold less weight than sworn testimony.

In the case of **Sarath Vs. Attorney General** (2006) 3 Sri L.R. 96 it was held:

“There is no rule that a particular item/evidence should be considered first in the judgment. There is no prescribed sequence in analyzing evidence. The judgment analysed the entire evidence at the same time. Therefore the fact of considering the dock statement at the beginning of the judgment would not make any difference as the prosecution evidence was considered at the same time.

One must bear in mind that when a dock statement is considered anywhere in the judgment, the judge who heard the evidence is aware of the prosecution case and would always consider the dock statement while considering the prosecution story. One cannot consider the dock statement in isolation.”

In the case of **Mannar Mannan v. The Republic of Sri Lanka** - [1990] LKSC 9; (1990) 1 Sri LR 280 (30 January 1990) it was held:

“In a trial on a charge of murder two eye-witnesses testified to seeing the accused appellant fire one shot with a gun at the deceased at night. The accused in a statement from the dock denied he was anywhere in the vicinity of the shooting. The trial judge failed to direct the jury that it was sufficient for the appellant to secure an acquittal if the statement from the dock raised a reasonable doubt in regard to the allegation of the prosecution that it was the appellant who shot the deceased.”

In the case of ***Meegastennage Prince Gunawardena v. AG*** (SC Appeal No. 42/2014 decided 7 November 2019) it was noted that:

“It is mandatory for the Judge to analyse the entire evidence before the Court and to find whether the ingredients are proved beyond reasonable doubt.”

The Learned High Court Judge in her judgment at pages 252-262 had considered the defence evidence at length in her judgment. Therefore, it is incorrect to say that the Learned High Court Judge had not correctly considered the dock statement and the defence evidence in the judgment.

The Learned High Court Judge in the judgment had considered all the evidence adduced by the prosecution and the defence and had given reasons as to why she acted on the evidence adduced by the prosecution. She has accurately analysed all the evidence presented by both parties with a correct perspective and had arrived at the correct finding.

In this case the Appellant is the biological father of the victim. He is a father of three children including the victim. The victim’s mother had passed away. The defence had made mitigating submissions highlighting the family situation of the Appellant.

Under Section 364(3) of the Penal Code, the minimum sentence is 15 years and the maximum sentence is 20 years. The minimum sentence is mandatory. As such, the sentence should start from 15 years and goes up to 20 years.

In this case the Learned High Court Judge had imposed a sentence of 19 years on the second count. I think imposing 19 years sentence is not warranted in this case. As such, I set aside the 19 years rigorous imprisonment imposed on the second count and replace it with 15 years rigorous imprisonment.

The fine and default sentence imposed will remain same.

I further order the sentence imposed to be operative from the date of conviction namely 10/10/2024.

The appeal is, therefore, dismissed subject to the above variation of the sentence.

The Registrar of this Court is directed to send this judgment to the High Court of Puttalam along with the original case record.

JUDGE OF THE COURT OF APPEAL

R. P. Hettiarachchi, J

I agree.

JUDGE OF THE COURT OF APPEAL